

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1454
(Representatives Henderson, K. Anderson, Frelich, Hauck, Kasper)
(Senators Paulson, Clemens)

AN ACT to create and enact a new section to chapter 23-12 of the North Dakota Century Code, relating to an opt-out procedure for required vaccines.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. A new section to chapter 23-12 of the North Dakota Century Code is created and enacted as follows:

Required vaccine - Opt-out procedure.

1. Notwithstanding any other provision of law, a state agency, political subdivision, or any other government entity may not require an individual to take or receive a vaccine or similar product used to prevent a disease, unless there is a procedure made available for an opt-out for health, religious, or philosophical reasons.
2. For a school, day care center, child care facility, head start program, or nursery school, section 23-07-17.1 must be followed for vaccines and vaccine opt-out procedures.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1454.

House Vote: Yeas 59 Nays 33 Absent 2

Senate Vote: Yeas 30 Nays 17 Absent 0

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State